



DECISION

Complaint No. : POS/4919/KE-335/2023

Name and Address of the Complainant : Syed Ezamuddin (Javed), R-96. Sector 18/A Quetta Town Cooperative Housing Society, Scheme-33, Gulzar-e-Hijri, Karachi.

Name of the Agency Complained against : Malir Development Authority (MDA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED DELAY IN ISSUANCE OF NOC AND TRANSFER OF PLOT NO L-8551, SECTOR 73/3, TAISER TOWN SCHEME-45, MDA PURCHASED BY THE COMPLAINANT.**

THE COMPLAINT

Syed Ezamuddin (Javed), in his complaint dated 04.07.2023, stated that he had purchased an 80 square yards plot No. L-8551, at Sector 73/3, Taiser Town, Scheme-45, MDA and had been pursuing its transfer in his name for about one and a half years. He stated that despite repeated visits to the MDA Taiser Town office, his issue has remained unresolved. In an effort to expedite the matter, he submitted a written application to the Assistant Director on 27.02.2022, followed by another application on 04.04.2022. However, he did not receive any response from the concerned authorities. Subsequently, he submitted a formal complaint to the Director General, Malir Development Authority (MDA) on 19.06.2023, but even then, no action was taken, and the issue remained unaddressed. He has, therefore, sought the intervention of this office for redressal of his grievance.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response, Deputy Director, Taiser Town, Scheme-45 (MDA) vide letter dated 24.08.2023, informed that the procedure of pre-lease transfer process of plot could not be initiated as the seller/allottee had not appeared before the concerned authority. The letter further stated that the complainant may be advised to approach the allottee/seller and ensure his presence before the concerned officer for the purpose of completing the transaction process for the transfer of the said plot.

3. A copy of the Agency's response was forwarded to the complainant for further action in light of the stated procedural requirement. The same stance was reiterated in subsequent communications issued by the Agency, in which the requirement of the seller's physical appearance was emphasized as a necessary precondition for transfer.

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4. However, after continued follow-up by the complainant and intervention by this office, the MDA, through its letter dated 02.09.2025, confirmed that all codal formalities had been fulfilled and that the transfer order had been issued in favour of Syed Ezamuddin S/o Syed Hashamuddin for Plot No. L-855, Sector 73/3, Taiser Town, Scheme-45, MDA.

FINDINGS

5. I have examined the case file and perused correspondence, reports and rejoinders etc., and observed that:

- i. The record reveals that the complainant persistently pursued the matter of plot transfer for over one and a half years. Despite initial procedural delays and repeated directions by the Agency requiring the seller's presence, the matter was ultimately resolved through continuous follow-up by the complainant and active intervention by this office.
- ii. The Malir Development Authority (MDA), after fulfillment of all requisite formalities, issued the transfer order in favour of the complainant, thereby redressing the grievance.
- iii. The complainant, upon receipt of Mutation letter from the Agency, expressed satisfaction and formally requested closure of the proceedings, while conveying his gratitude for the efforts made by this office.

DECISION

6. In view of above, the complaint stands disposed of as redressed.

Given under my hand and seal of the office



Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 30-10-2025